

Maseet Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 February 2023 · WRIT - C No. 36326 of 2022 · **Writ disposed of; prepaid-meter connection to be granted within two weeks if the petitioner applies and meets Supply Code requirements.**

HEADNOTE

A tenant/occupant whose inherited connection was disconnected on the owner's complaint obtained a time-bound grant of prepaid-meter supply. The distribution corporation having no objection, the High Court directed a fresh application for prepaid-meter connection and, if Supply Code, 2005 requirements were satisfied, grant within two weeks.

FACTUAL SUMMARY

The petitioner, an occupant/tenant, alleged that connection No. 8493249216, granted to his father and for which he had been paying the dues, was disconnected by the corporation on a complaint of the fourth respondent, who claimed to be the owner. He said he was being harassed as tenant of part of the premises at that respondent's instance. Counsel for the corporation stated on instructions that it had no objection to prepaid-meter supply; the petitioner did not object.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

prepaid-meter new connection

HOLDING

On the licensee's statement that it had no objection to prepaid-meter supply, the writ was disposed of directing the petitioner to apply afresh for electricity connection through a prepaid meter; if he applies and satisfies the requirements for a new connection, the licensee shall grant the connection within two weeks as per the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

prepaid-meter-fresh-application Where an inherited connection has been disconnected on an owner's complaint and the licensee has no objection, the occupant may be directed to apply afresh for prepaid-meter supply, to be granted within a fixed time if Supply Code requirements are met. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — TITLE OR OWNERSHIP AS BETWEEN THE PETITIONER-TENANT AND THE FOURTH RESPONDENT

The Court recorded the competing claims but did not decide who owned the premises. ¶ 1

NOT DECIDED — LAWFULNESS OF DISCONNECTING CONNECTION NO. 8493249216

Disposal proceeded on the licensee's no-objection to a prepaid-meter connection, not on the validity of the disconnection. ¶ 1